

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:**JOEL CORTES,****Date Purchased:**

Plaintiff,

Date Filed:

– against –

SUMMONS**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JOHN LIVINGSTON,
DETECTIVE JAMES FLYNN, POLICE OFFICER
JOHN DOE AND POLICE OFFICER JOHN ROE,**Plaintiff designates Bronx County as the
place of trial. The basis of venue is the
action arose in Bronx County.

Defendant(s).**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: Bronx, New York
November 11, 2015**NEIL WOLLERSTEIN, ESQ.**Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
Tel: (718) 588-1300
Fax: (917) 522-9703

TO: ZACHARY W. CARTER, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE JOHN LIVINGSTON (Shield No. 6009)
1 Police Plaza
New York, NY 10038

DETECTIVE JAMES FLYNN (Shield No. 0858)
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JOEL CORTES,

INDEX NO.:

Plaintiff,

– against –

VERIFIED COMPLAINT

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JOHN LIVINGSTON,
DETECTIVE JAMES FLYNN, POLICE OFFICER
JOHN DOE AND POLICE OFFICER JOHN ROE,**

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **JOEL CORTES** was and is a resident of Bronx County of the Bronx, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 8/28/14 and at all times hereinafter mentioned the defendant, DETECTIVE JOHN LIVINGSTON (Shield No. 6009), hereinafter referred to as “LIVINGSTON” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 8/28/14 and at all times hereinafter mentioned the defendant, DETECTIVE JAMES FLYNN (Shield No. 0858), also hereinafter referred to as “FLYNN” was and

is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 8/28/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 8/28/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. Upon information and belief, at all times hereinafter mentioned, and on 8/28/14, at approximately 11:30 a.m., several police officers including but not limited to LIVINGSTON, FLYNN, DOE and ROE were on duty and in the vicinity of East 161st Street and Morris Avenue, County of Bronx, City and State of New York.

9. Upon information and belief, at all times hereinafter mentioned, and on 8/28/14, at approximately 11:30 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its’ agents, servants and/or employees.

10. Upon information and belief, defendants LIVINGSTON, FLYNN, DOE and ROE were all assigned to Bronx Narcotics.

11. That on and prior to 8/28/14 LIVINGSTON, FLYNN, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

12. That on and prior to 8/28/14, at approximately 11:30 a.m., and all relevant times herein after, LIVINGSTON, FLYNN, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

13. That on 8/28/14, at approximately, 11:30 a.m., Plaintiff **JOEL CORTES** was lawfully in the vicinity of East 161st Street and Morris Avenue, County of the Bronx, City and State of New York and doing nothing illegal, improper or acting suspicious in anyway.

14. That on 8/28/14, at approximately, 11:30 a.m., in the vicinity of East 161st Street and Morris Avenue, County of Bronx, State of New York, LIVINGSTON, FLYNN, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, and based on fraud, perjury and misrepresentations, approached Plaintiff **JOEL CORTES** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

15. Upon information and belief LIVINGSTON, FLYNN, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **JOEL CORTES**.

16. Upon information and belief, Plaintiff **JOEL CORTES** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

17. That Plaintiff **JOEL CORTES** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime.

18. Thereafter, Plaintiff **JOEL CORTES** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

19. Plaintiff **JOEL CORTES** sustained physical and emotional pain and injuries as a

result of this incident.

20. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **JOEL CORTES** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department.

21. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

22. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOEL CORTES

23. Plaintiff **JOEL CORTES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 22 with the same force and effect as if fully set forth at length herein.

24. That on or about 8/28/14, at approximately 11:30 a.m., the Plaintiff **JOEL CORTES** was without just cause, probable cause or provocation, and with reckless, negligent and callous

disregard for the truth, and without investigation, and based on fraud, perjury and misrepresentations, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE, their agents, servants and/or employees, and in particular, by LIVINGSTON, FLYNN, DOE and ROE.

25. That on or about 8/28/14, at approximately 11:30 a.m., the Plaintiff **JOEL CORTES** while lawfully in the vicinity of East 161st Street and Morris Avenue, County of the Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE of having committed a crime and said accusation was based on fraud, perjury and misrepresentations.

26. That on or about 8/28/14, and upon arresting the Plaintiff **JOEL CORTES** and depriving him of his liberty, CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE took the Plaintiff **JOEL CORTES** to a police station in the County of Bronx and entered him on the records as under arrest.

27. That on or about 8/28/14, the CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE further caused Plaintiff **JOEL CORTES** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

28. That on or about 8/28/14 Plaintiff **JOEL CORTES** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

29. That at all times hereinafter mentioned the actions of CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE as described above were carried out in a reckless, deliberate, willful,

wanton, malicious and grossly negligent manner.

30. That by reason of the foregoing, Plaintiff **JOEL CORTES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOEL CORTES

31. Plaintiff **JOEL CORTES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 30 with the same force and effect as if fully set forth at length herein.

32. That on or about 8/28/14, a criminal complaint was issued by the CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification and said criminal complaint was issued based on misrepresentations, fraud, and perjury.

33. That on or about 8/28/14 a criminal action against Plaintiff **JOEL CORTES** was commenced by CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

34. That solely as a result of the aforesaid, the Plaintiff **JOEL CORTES'S** life was interfered with.

35. That the criminal action against Plaintiff **JOEL CORTES** was continued for an extended period of time by defendants with malice and bad faith.

36. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **JOEL CORTES**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

37. That the criminal action against Plaintiff **JOEL CORTES** was terminated favorably by dismissal.

38. That the actions of CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

39. That by reason of the foregoing, Plaintiff **JOEL CORTES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOEL CORTES**

40. Plaintiff **JOEL CORTES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 39 with the same force and effect as if fully set forth at length herein.

41. That on or about 8/28/14, and while in the custody of the defendants in the County of the Bronx, City and State New York, the Plaintiff **JOEL CORTES** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

42. That on or about 8/28/14 CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, LIVINGSTON, JAMES FLYNN, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **JOEL CORTES** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **JOEL**

CORTES and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **JOEL CORTES** and caused such battery in and about his head, neck, back, body and limbs.

43. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **JOEL CORTES** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

44. That as a result of the aforesaid assault and battery the Plaintiff **JOEL CORTES** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

45. That at all times hereinafter mentioned the actions of CITY, NYPD, LIVINGSTON, FLYNN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **JOEL CORTES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOEL CORTES**

47. Plaintiff **JOEL CORTES** repeats, reiterates and realleges each and every allegation

contained in paragraphs numbered 1 – 46 with the same force and effect as if fully set forth at length herein.

48. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to LIVINGSTON, FLYNN, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

50. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

51. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the

arrest process.

52. That by reason of the above, the Plaintiff **JOEL CORTES** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

53. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

54. That by reason of the foregoing, Plaintiff **JOEL CORTES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOEL CORTES

55. Plaintiff **JOEL CORTES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-54 with the same force and effect as if fully set forth at length herein.

56. In arresting Plaintiff **JOEL CORTES**, police officers including but not limited to LIVINGSTON, FLYNN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

57. In arresting Plaintiff **JOEL CORTES**, police officers including but not limited to LIVINGSTON, FLYNN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **JOEL CORTES** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

58. As a result of the abuse of process by defendants herein, Plaintiff **JOEL CORTES** sustained multiple injuries including but not limited to loss of liberty, emotional distress,

VERIFICATION

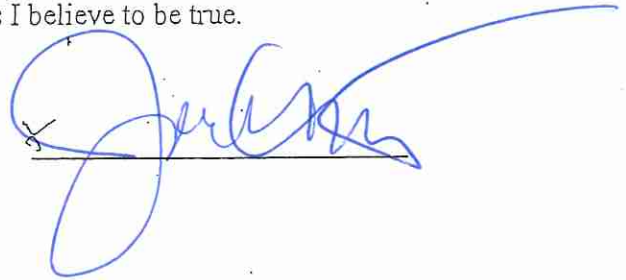
STATE OF NEW YORK }
COUNTY OF BRONX }

SS:

I, Joel Cortes, being duly sworn, say:

1. I am the plaintiff in the within action.

2. I have read the attached Summons and Complaint and know the contents thereof, the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.



Sworn to before me this

11 day of November, 2015

NEIL WOLLERSTEIN
Notary Public, State of New York
No. 02WO6104776
Qualified in New York County
~~NOTARY PUBLIC~~
Commission Expires February 2, 2016



humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

59. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

60. That by reason of the foregoing, Plaintiff **JOEL CORTES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **JOEL CORTES** demands judgment against the defendants on the First Cause of Action through the Fifth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
 November 11, 2015

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOEL CORTES,

Plaintiff,

— against —

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE JOHN
LIVINGSTON, DETECTIVE JAMES FLYNN, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

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